

CV-23-002864 GUTIERREZ, WENDY MARILYN QUINTERO vs MERCADO, JOSE – a) Defendants Jorge Mercado & Josephine Mercado’s Motion to Compel Further Responses to Special Interrogatories to Plaintiff Wendy Marilyn Quintero Gutierrez and for Sanctions – GRANTED; b) Defendants Jorge Mercado & Josephine Mercado’s Motion to Compel Further Responses to Special Interrogatories to Plaintiff Alann Flores-Canales and for Sanctions – GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: Defendants Jorge Mercado and Josephine Mercado's motion to compel further responses to Special Interrogatories Nos. 1, 2, 12, 20, and 28 is GRANTED. The challenged responses are evasive and incomplete. Code of Civil Procedure section 2030.220 requires interrogatory responses to be as complete and straightforward as the information reasonably available to the responding party permits. Plaintiff's responses either repeat allegations from the complaint, provide broad categories of alleged defects without identifying the specific defects at issue, or provide vague temporal responses such as "after the purchase" or "gradually after they moved into the property." Such responses do not provide the information sought by the interrogatories and do not permit defendants to determine the precise factual bases for plaintiff's claims. Plaintiff's contention that responsive information may be found in previously produced documents does not excuse compliance with the discovery statutes. To the extent plaintiff seeks to rely upon Code of Civil Procedure section 2030.230, the responses do not sufficiently identify the specific documents from which the requested information may be ascertained. The court further finds the requested information is directly relevant to the claims and damages alleged in the complaint and is discoverable. Plaintiff Wendy Marilyn Quintero Gutierrez shall serve verified further responses, without objections, to Special Interrogatories Nos. 1, 2, 12, 20, and 28 within 10 calendar days of service of the order. The request for monetary sanctions is GRANTED IN PART. While sanctions are appropriate because plaintiff unsuccessfully opposed the motion and the responses necessitated court intervention, the court notes substantial overlap between the motions directed to the two plaintiffs and modest duplication in counsel's work. Accordingly, sanctions are reduced from the requested \$2,025.90 to \$1,260.00, payable jointly and severally by plaintiff Wendy Marilyn Quintero Gutierrez and plaintiffs' counsel to defendants, through counsel, within 30 days. Motion to Compel Further Responses to Special Interrogatories (Alann Flores Canales) Defendants Jorge Mercado and Josephine Mercado's motion to compel further responses to Special Interrogatories Nos. 1, 9, 10, 12, 13, 16, 17, 19, and 20 is GRANTED. The challenged responses are evasive, incomplete, and in several instances non-responsive to the interrogatories posed. Responses stating only that alleged defects were discovered "after they moved into the property" do not provide meaningful information concerning dates of discovery. Likewise, merely repeating allegations from the complaint does not answer interrogatories seeking specific facts, identification of individuals, identification of documents, or disclosure of the factual basis for claimed knowledge. Particularly deficient are the responses to Special Interrogatories Nos. 10, 12, 13, 17, 19, and 20. Plaintiff alleges that someone represented the foundation crack was merely "cosmetic," that a structural engineer inspected the property and reached certain conclusions, and that multiple HVAC estimates were obtained. Defendants are entitled to discovery regarding the identities of those people, the factual basis for those allegations, and the documents supporting them. Plaintiff's responses do not provide that information. The court rejects Plaintiff's argument that the motion should be denied because responsive information exists somewhere within plaintiffs' document production. The discovery statutes require direct, code-compliant responses. General references to produced documents do not satisfy that obligation. Accordingly, plaintiff Alann Flores Canales shall serve verified further responses, without objections, to Special Interrogatories Nos. 1, 9, 10, 12, 13, 16, 17, 19, and 20 within 10 calendar days of service of the order. The request for monetary sanctions is GRANTED IN PART. The court finds sanctions appropriate under Code of Civil Procedure section 2030.300(d). However, because substantial portions of counsel's work on this motion overlap with the companion motion brought against co-plaintiff Gutierrez, the court finds a reduction in the amount requested is warranted. Sanctions are awarded in the amount of \$1,260.00, payable jointly and severally by plaintiff Alann Flores Canales and plaintiffs' counsel to defendants, through counsel, within 30 days.

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CV-23-002864 – GUTIERREZ, WENDY MARILYN QUINTERO vs MERCADO, JOSE – a) Defendants Jorge Mercado & Josephine Mercado's Motion to Compel Further Responses to Special Interrogatories to Plaintiff Wendy Marilyn Quintero Gutierrez and for Sanctions – GRANTED; b) Defendants Jorge Mercado & Josephine Mercado's Motion to Compel Further Responses to Special Interrogatories to Plaintiff Alann Flores-Canales and for Sanctions – GRANTED.

Defendants Jorge Mercado and Josephine Mercado's motion to compel further responses to Special Interrogatories Nos. 1, 2, 12, 20, and 28 is GRANTED.

The challenged responses are evasive and incomplete. Code of Civil Procedure section 2030.220 requires interrogatory responses to be as complete and straightforward as the information reasonably available to the responding party permits. Plaintiff's responses either repeat allegations from the complaint, provide broad categories of alleged defects without identifying the specific defects at issue, or provide vague temporal responses such as "after the purchase" or "gradually after they moved into the property." Such responses do not provide the information sought by the interrogatories and do not permit defendants to determine the precise factual bases for plaintiff's claims.

Plaintiff's contention that responsive information may be found in previously produced documents does not excuse compliance with the discovery statutes. To the extent plaintiff seeks to rely upon Code of Civil Procedure section 2030.230, the responses do not sufficiently identify the specific documents from which the requested information may be ascertained.

The court further finds the requested information is directly relevant to the claims and damages alleged in the complaint and is discoverable.

Plaintiff Wendy Marilyn Quintero Gutierrez shall serve verified further responses, without objections, to Special Interrogatories Nos. 1, 2, 12, 20, and 28 within 10 calendar days of service of the order.

The request for monetary sanctions is GRANTED IN PART. While sanctions are appropriate because plaintiff unsuccessfully opposed the motion and the responses necessitated court intervention, the court notes substantial overlap between the motions directed to the two plaintiffs and modest duplication in counsel's work. Accordingly, sanctions are reduced from the requested \$2,025.90 to \$1,260.00, payable jointly and severally by plaintiff Wendy Marilyn Quintero Gutierrez and plaintiffs' counsel to defendants, through counsel, within 30 days.

Motion to Compel Further Responses to Special Interrogatories (Alann Flores Canales)

Defendants Jorge Mercado and Josephine Mercado's motion to compel further responses to Special Interrogatories Nos. 1, 9, 10, 12, 13, 16, 17, 19, and 20 is GRANTED.

The challenged responses are evasive, incomplete, and in several instances non-responsive to the interrogatories posed. Responses stating only that alleged defects were discovered "after they moved into the property" do not provide meaningful information concerning dates of discovery. Likewise, merely repeating allegations from the complaint does not answer interrogatories seeking specific facts, identification of individuals, identification of documents, or disclosure of the factual basis for claimed knowledge.

Particularly deficient are the responses to Special Interrogatories Nos. 10, 12, 13, 17, 19, and 20. Plaintiff alleges that someone represented the foundation crack was merely "cosmetic," that a structural engineer inspected the property and reached certain conclusions, and that multiple HVAC estimates were obtained. Defendants are entitled to discovery regarding the identities of those people, the factual basis for those allegations, and the documents supporting them. Plaintiff's responses do not provide that information.

The court rejects Plaintiff's argument that the motion should be denied because responsive information exists somewhere within plaintiffs' document production. The discovery statutes require direct, code-compliant responses. General references to produced documents do not satisfy that obligation.

Accordingly, plaintiff Alann Flores Canales shall serve verified further responses, without objections, to Special Interrogatories Nos. 1, 9, 10, 12, 13, 16, 17, 19, and 20 within 10 calendar days of service of the order.

The request for monetary sanctions is GRANTED IN PART. The court finds sanctions appropriate under Code of Civil Procedure section 2030.300(d). However, because substantial portions of counsel's work on this motion overlap with the companion motion brought against co-plaintiff Gutierrez, the court finds a reduction in the amount requested is warranted. Sanctions are awarded in the amount of \$1,260.00, payable jointly and severally by plaintiff Alann Flores Canales and plaintiffs' counsel to defendants, through counsel, within 30 days.